

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORKRECEIVED
SDNY PRO SE OFFICEPAUL DURHAM, PLAINTIFF

17CV535

(In the space above enter the full name(s) of the plaintiff(s).)

-against-

DETECTIVE'S, MOO YOUNG,
DET, CARDONA, DET, CAESAR,
DET, DINDER, DET, EDWARDS,
Sgt, GRIFFIN, PO BURKE
25 pct, AND THE CITY OF NEW
YORK,DEFENDANTS,

(In the space above enter the full name(s) of the defendant(s). If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed in the above caption must be identical to those contained in Part I. Addresses should not be included here.)

COMPLAINT

under the
Civil Rights Act, 42 U.S.C. § 1983
(Prisoner Complaint)Jury Trial: ☒ Yes ☐ No
(check one)

I. Parties in this complaint:

- A. List your name, identification number, and the name and address of your current place of confinement. Do the same for any additional plaintiffs named. Attach additional sheets of paper as necessary.

Plaintiff Name PAUL DURHAM
ID # 14R 1850
Current Institution GREENE CORR FACILITY
Address P.O. Box 975, COXSACKIE, N.Y.
12051-0975

- B. List all defendants' names, positions, places of employment, and the address where each defendant may be served. Make sure that the defendant(s) listed below are identical to those contained in the above caption. Attach additional sheets of paper as necessary.

Defendant No. 1 Name DETECTIVE, MOO YOUNG Shield # 3281
Where Currently Employed E 119th STREET, 25th pct
Address NEW YORK, N.Y. 10027

PO BURKE
E 119th Street 25th pct
New York NY 10027

Defendant No. 2 Name Detective, CARDONA Shield # 446
Where Currently Employed E 119th Street, 25th pct.
Address New York, N.Y. 10027

Defendant No. 3 Name Detective, CAESAR Shield #
Where Currently Employed E 119th Street, 25th pct.
Address New York, N.Y. 10027

Defendant No. 4 Name Detective, Dinder Shield #
Where Currently Employed E 119th Street, 25th pct.
Address New York, N.Y. 10027

Defendant No. 5 Name Detective, Edwards Shield #
Where Currently Employed E 119th Street, 25th pct.
Address New York, N.Y. 10027

Sgt. GRIFFIN, shield #
E 119th Street, 25th pct.
New York, N.Y. 10027

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?
Inside The 25th pct. Holding cell

B. Where in the institution did the events giving rise to your claim(s) occur?
Holding cell, inside the 25th pct.

C. What date and approximate time did the events giving rise to your claim(s) occur?
MAY 30, 2013 3:35 pm.

D. Facts: SEE ATTACHED -

What happened to you?

Who did what?

Was anyone else involved?

Who else saw what happened?

III. Injuries:

If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if any, you required and received.

Fracture to Left Elbow with BONE fragments and loose bone chips in elbow with pain PERSCRIPTION management and physical EXTREM PAIN TREATMENT

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ___ No X

42 U.S.C 1983 Complaint

FACTS

ON MAY 30th 2013 I Paul Durham Plaintiff in the above complaint was ARRESTED FOR CRIMINAL SALE OF A CONTROLLED SUBSTANCE WHICH RESULTED IN ME OBTAINING DOCUMENTED PHYSICAL INJURY DUE TO A DELIBERATE INDIFFERENCE.

MORE Telling (inter alia) while standing outside ON WEST 114th STREET BETWEEN 7th AND 8th AVE AND WITHOUT EXPLANATION OR PROVOCATION THE MANHATTAN SPECIAL NARCOTICS UNIT BOMBARDED THE BLOCK OF WEST 114th ST BETWEEN 7th AND 8th AVE I WAS EXERCISING PROTECTED CONDUCT WHEN OFFICERS, Det - MOOYOUNG, Det PINDER AND Det EDWARDS (DEFENDANT'S) JUMPED OUT AN UNMARKED CAR AND PROCESSED TOWARDS ME WITH HANDCUFFS. ONCE I WAS HANDCUFFED I WAS THEN SEARCHED TO WHERE EVERYTHING WAS TAKEN OUT OF MY POCKET'S AND THEN PLACED BACK IN MY POCKET'S THEN I WAS PEDIGREED WHERE ONCE AGAIN EVERYTHING WAS TAKEN OUT OF MY POCKET'S AND PLACED INSIDE OF A YELLOW ENVELOPE. ONCE THIS WAS DONE I WAS THEN RUSHED AND FORCEFULLY PLACED IN THE OFFICERS UNMARKED VEHICLE. ARRESTING ME WITHOUT A WARRANT OR ANY LEGITIMATE PENOLOGICAL PURPOSE. THEN I WAS BROUGHT TO THE 25th PCT STATION HOUSE BY Det MOOYOUNG Det PINDER AND Det EDWARDS ONCE INSIDE THE STATION AND TAKEN TO A HOLDING CELL IN THE BACK Det CARDONA AND Det MOOYOUNG AND Det EDWARDS ENTER THE HOLDING CELL AREA WITH ME

ONCE I AND THE DEFENDANTS WERE IN THE CELL I WAS TOLD TO GET COMPLETELY NAKED AT THIS TIME THERE WERE OFFICERS IN THE HOLDING CELL AREA INSIDE THE PERIMETER BUT STANDING OUT THE CELL I WAS IN. ONCE I STATED I WASN'T GETTING NAKED I WAS JUMPED BEATEN AND MY CLOTHES WERE BEING TORN OFF MY BODY. BY DEFENDANTS (DET MOODY) (DET CALDONIA) (DET PINDER) (DET EDWARDS) (DET CASSAR) (PO. BURE) AND (SGT GRIFFIN) AFTER BEATING AND JUMPING ON ME THE DEFENDANTS PUT ME THROUGH A NUMBER OF UNLAWFUL BODY SEARCHES THEY CONDUCTED A (VISUALLY CAVITY) (MANUALLY CAVITY) SEARCH WITH OUT A WARRANT AND CAUSING EMBARRASMENT HUMILIATION AND PHYSICAL INJURY ADDITIONALLY THE DEFENDANTS HERETOFORE HAD A CULPABLE WANTING STATE OF MIND TO DELIBERATELY CAUSE ME TO SUSTAIN PHYSICAL INJURY. MOREOVER THE RESULTING INJURIES BY DEFENDANTS CAUSED ME TO GO TO THE HOSPITAL WHERE IT WAS DOCUMENTED OF THE INJURIES (SUPRA)

therefore for the reasons ABOVE AND THE DOCUMENTED DELIBERATE INDIFERENCE HAS CAUSED ME EXTREME PAIN AND SUFFERING THAT IS ON GOING PER THE 4th, 5th, 6th AND 8th AMENDMENTS OF THE UNITED STATES CONSTITUTION AND 42 U.S.C 1983. WHEREFORE PLAINTIFF REQUESTS \$2. million dollars for punitive DAMAGES AND \$3. million dollars for compensatory DAMAGES.

Respectfully By Mr Paul
Plaintiff

cc: file.

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s). N/A

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes ☐ No ☒ Do Not Know ☐

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes ☐ No ☒ Do Not Know ☐

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes ☐ No ☒

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes ☐ No ☒

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance? N/A

1. Which claim(s) in this complaint did you grieve? N/A

2. What was the result, if any? N/A

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. N/A

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: _____

HAPPEN'ED AT 25TH PCT, N.Y. N.Y.
EAST 119TH STREET 10027

2. If you did not file a grievance but informed any officials of your claim, state who you informed, _____

when and how, and their response, if any:

Bellvue Hospital &
St. Luke's Hospital

G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies.

N/A Civil Rights

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount).

Relief in monetary & compensatory damages
in the amount of 3 million dollars.

VI. Previous lawsuits:

A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes No ☒

On
these
claims

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff N/A

Defendants N/A

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?
Yes _____ No X

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff N/A

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes _____ No _____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 18 day of JANUARY, 2017

Signature of Plaintiff

PAUL DURHAM

Inmate Number

14-R-1850

Institution Address

GREENE CORRECTIONAL FACILITY

PO BOX 995

COXSACKIE NY 12051-0975

G-2 22 BED

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 18 day of JANUARY, 2017 I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

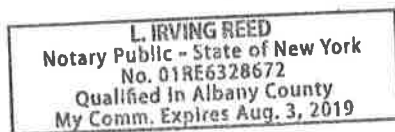
Signature of Plaintiff:

Paul Durham

State of New York } ss.
County of Greene }

Sworn to before me on this
18th day of January, 2017

L. Irving Reed



AO 440 (Rev. 12/09) Summons in a Civil Action (Page 2)

RECEIVED
SDNY PRO SE OFFICE

Civil Action No. _____

2017 JAN 24 PM 4:28

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
 on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ _____ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM.)

I. (a) PLAINTIFFS

(b) County of Residence of First Listed Plaintiff _____
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number) _____

DEFENDANTS

County of Residence of First Listed Defendant _____
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE LAND INVOLVED.

Attorneys (If Known) _____

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff ☒ 3 Federal Question (U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | | | | | |
|---|---------------------------------------|----------------------------|---|----------------------------|----------------------------|
| | PTF | DEF | | PTF | DEF |
| Citizen of This State | ☒ 1 | ☐ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES	
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☒ 360 Other Personal Injury	☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Mgmt. Relations ☐ 730 Labor/Mgmt. Reporting & Disclosure Act ☐ 740 Railway Labor Act ☐ 790 Other Labor Litigation ☐ 791 Empl. Ret. Inc. Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 463 Habeas Corpus - Alien Detainee ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(p)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☒ 440 Other Civil Rights	PRISONER PETITIONS ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition			

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from another district (specify) ☐ 6 Multidistrict Litigation ☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity): 42 U.S.C. 1983

Brief description of cause: Civil Right's Excessive Force Injury

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23 ☐ DEMAND \$ _____ CHECK YES only if demanded in complaint: JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE _____

DOCKET NUMBER _____

DATE

SIGNATURE OF ATTORNEY OF RECORD

1-10-17

BY: Paul Dh

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

AO 440 (Rev. 12/09) Summons in a Civil Action

RECEIVED
SDNY PRO SE OFFICE

UNITED STATES DISTRICT COURT

for the

2017 JAN 24 PM 4:29

PAUL DURHAM

Plaintiff

v.

CITY OF NEW YORK

Defendant

Civil Action No.

SUMMONS IN A CIVIL ACTION

To: (Defendant's name and address)

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court,

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

RECEIVED
SDNY PRO SE OFFICE
2017 JAN 24 PM 4:28

DEAR Hon. Clerk of the Court
Enclosed is my complaint, Plus one copy.
Please send me Eight U.S.M. Form's upon
my complaint being Docket'ed.

Thank you for your time in this matter, I AM,

Very Truly Yours

MR Paul 
#14R1850
G-2 72 Bed

MR. PAUL DURHAM #14-R-1850 G-2 22 Bed

GREENE CORRECTIONAL FACILITY

PO Box 975

COXSACKIE NEW YORK 12051-0975

GREENE
CORRECTIONAL
FACILITY



049JB2020280

\$01.570

01/06/2017

Mailed From 12051
US POSTAGE



USM_{P3}
SDNY

U.S. District Court
Southern District of New York
DANIEL PATRICK MOYNIHAN U.S. COURT HOUSE
500 PEARL ST NYC 10007-1312

Pro Se
1/24/17
Se

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